

CV-24-002516 HERNANDEZ, ESTEVON MACIEL vs ACCELERATED CONSTRUCTION & METAL LLC – Plaintiff’s Motion for Preliminary Approval of Class Action – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court finds the proposed settlement is within the range or reasonableness and deemed to be presumptively valid, subject to any objections that may be heard at the final fairness hearing and final approval by this Court. Good cause appearing to the satisfaction of the Court, the class is certified for settlement purposes only in accordance with Cal. Rules of Ct., rule 3.769(c). The class counsel, class representative, and claims administrator are hereby preliminarily approved and appointed as set forth in the motion. The Court sets the following deadlines relative to this matter: 7-9-26 Defendant shall provide Class List and Data Report to Administrator 7-23-26 Administrator shall mail Class Notice to Class Members. 9-8-26 Deadline for submission of Opt-Out Notice, Objections, or dispute their share of the settlement proceeds 10-20-26 Deadline for counsel to file motion for order of final approval However, the Court has concerns with regard to the language included in the settlement agreement regarding the scope of claims released by the class. Specifically, the Court questions the broad inclusion of any and all potential claims that “could have been” asserted in the action and whether the scope of the release is sufficiently tethered to the facts at issue in this action to prevent the class members’ unintended release of unrelated and/or unforeseen claims. Consequently, the Court instructs counsel to confer with the goal of addressing this issue, potentially by amendment to clarify the language, and to present the Court with additional information in this regard at the time of the final approval hearing. The parties are strongly cautioned that the Court will be reluctant to grant final approval if this issue is not satisfactorily addressed. A final fairness hearing in this matter shall be set for November 12, 2026 at 8:30 a.m. in Department 23 of this court. The Class Notice and proposed order shall be revised to reflect the information reflected herein, including the date of the final fairness hearing and the corresponding deadlines.

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The Court finds the proposed settlement is within the range or reasonableness and deemed to be presumptively valid, subject to any objections that may be heard at the final fairness hearing and final approval by this Court.

Good cause appearing to the satisfaction of the Court, the class is certified for settlement purposes only in accordance with Cal. Rules of Ct., rule 3.769(c). The class counsel, class representative, and claims administrator are hereby preliminarily approved and appointed as set forth in the motion.

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However, the Court has concerns with regard to the language included in the settlement agreement regarding the scope of claims released by the class. Specifically, the Court questions the broad inclusion of any and all potential claims that “could have been” asserted in the action and whether the scope of the release is sufficiently tethered to the facts at issue in this action to prevent the class members’ unintended release of unrelated and/or unforeseen claims. Consequently, the Court instructs counsel to confer with the goal of addressing this issue, potentially by amendment to clarify the language, and to present the Court with additional information in this regard at the time of the final approval hearing. The parties are strongly cautioned that the Court will be reluctant to grant final approval if this issue is not satisfactorily addressed.

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